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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 2010/23 - 2017 මාර්තු මස 16 වැනි බ්‍රහස්පතින්දා - 2017.03.16
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PART I : SECTION (I) — GENERAL

Government Notifications

THE WATER RESOURCES BOARD ACT, No. 29 OF 1964

Order under Section 16

BY virtue of the powers vested in me by Section 16 of the Water Resources Board Act, No. 29 of 1964, as amended by Act, No. 42 of 1999, I, Gamini Wijith Wijayamuni Zoysa, Minister of Irrigation and Water Resources Management do by this Order, declare and publish the orders of Water Resources Board Act.

GAMINI WIJITH WIJAYAMUNI ZOYSA,
Minister of Irrigation and Water Resources Management.

Ministry of Irrigation and Water Resources Management,
Colombo,
15th March, 2017.

The Orders made by Minister of Irrigation and Water Resources Management under Section 16(1) and 16(2) in respect of matters mentioned in Section 12(1) of the Water Resources Board Act, No. 29 of 1964

- (1) If any of the government or local government institutions, non-governmental organizations or institution or an individual use in future the natural water springs or ground water for the under mentioned purposes or projects, the entire project proposals containing full details of such purposes or projects should be carried out under the supervision and directions of the Water Resources Board. Before the implementation of such activities or the project [1(a) and (b)] the written permission of the Water Resources Board should be obtained.
- (i) (a) When constructing agro wells whose diameter is 4 meters or more
- (b) Dug wells or tube wells constructed for commercial purposes of the agriculture and industry or commercial agricultural activity, project or any other type of industry started by using natural springs, production tube well or dug wells (annex 01).
- (2) (i) All those who are engaged in the construction of tube wells must get registered in Water Resources Board before engage in drilling activities.



The tube well construction must be done according to the instructions issued by the Water Resources Board and the safe yield of the well should be assessed under the supervision of the Water Resources Board and relevant approval should be taken regarding the safe yield of that particular well. Accordingly a flow meter should be fixed by the owner of the industry to monitor the amount of water pumped from the well daily and the data on daily pumped water capacities should be maintained. The owner of the well is bound to show all these records when and where requested by the Water Resources Board.

- (ii) Data in respect of all the tube wells constructed by the above registered parties must be submitted to the Water Resources Board every three months according to the specimen indicated in **Annex 2 and Annex 03**.

Water Resources Board will maintain this data in their data base and use them for groundwater management and planning the future projects.

- (3) Any government or local government institution, non government organizations, any institute or an individual that engages in water bottling, industry, beverage industry and if uses water from springs or groundwater for their manufacturing purposes, a water sample should be analyzed once in every six months from a reputed chemical laboratory as indicated in **annex (04)** and the those reports should be submitted to the Water Resources Board for the approval.
- (4) A perimeter protection report should be taken from the Water Resources Board of those who extract groundwater more than 30,000 liter per month for commercial agriculture or industry (**annex 05**).
- (5) Water Resources Board has the right to enter and examine the industries or service stations that use the water from natural springs or underground for their production with or without prior notice at any time of the day or reasonable period.
- (6) Action will be taken under Water Resources Board Act, No. 29 of 1964 and amended by Act, No. 42 of 1999 Section 20 against those government or local government institution or individuals who do not act as described under paragraphs above and the Water Resources Board has the right to get legal action against who do not act on the directives issued by it.

Annex 01

The groundwater based industries

1. Bottle water industry
2. Beverage industry
3. Laundries
4. Vehicle service stations
5. Hotels
6. Plant nurseries
7. Agriculture farms
8. Livestock farms
9. Private groundwater selling points
10. Coir and rubber industry
11. Ice factories
12. Any other industry as per the decision of the Water Resources Board.

The data format of the shallow and deep tube wells

1. GPS coordinates of the well
2. Geophysical data
3. Diameter of the well
4. Depth of the well
5. Well logs
6. Drilling records of the well
7. Water level of the well
8. Pump test report of the well
9. Analytical data of the water samples (physical, chemical bacteriological data and data on heavy metals)
10. Details of the fractures encountered while drilling

Data format of the Agro wells

1. GPS coordinates of the agro well
2. Geo physical data
3. Diameter of the agro well
4. Depth of the agro well
5. Whether the agro well excavated up to the bed rock
6. Static water level of the agro well
7. Pumping test report
8. Analytical report of the water sample (physical, chemical bacteria and for heavy metals)

The accepted government Chemical laboratories

1. Industrial Technology Institute (ITI)
2. Water Resources Board (WRB)
3. National Water Supply and Drainage Board (NWS and DB)
4. Sri Lanka Standard Institute (SLS)
5. Geological and Mines Bureau (GSMB)
6. National Building and Research Organization (NBRO)

All the industries indicated in Annex 01

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